

**SUPERIOR COURT OF CALIFORNIA  
COUNTY OF MARIN**

DATE: 09/16/26      TIME: 1:30 P.M.      DEPT: H      CASE NO: CV0010212

PRESIDING: HON. SHEILA S. LICHTBLAU

REPORTER:

CLERK: ALINA ANDRES

PLAINTIFF:    SUSAN DAVIA  
                         vs.

DEFENDANT: DA BOMB, LLC, ET AL.

NATURE OF PROCEEDINGS: MOTION - QUASH

**RULING**

Plaintiff Susan Davia (“Plaintiff”) brings this action against Da Bomb, LLC, CVS Health Corporation, and CVS Pharmacy, Inc. alleging that Defendants failed to warn consumers about an unsafe chemical, DEHP, in or on the Da Bomb Gift Set products with vinyl cases in violation of Proposition 65. Plaintiff filed her complaint on May 27, 2026. At present, CVS Health Corporation (“CVS Health”) moves to quash service of summons on the ground that the Court lacks personal jurisdiction over it. Plaintiff opposes the motion on procedural grounds only. She argues that CVS Health failed to provide proper notice of the motion and that the motion is untimely.

***Discussion***

“A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion... [¶] [t]o quash service of summons on the ground of lack of jurisdiction of the court over him or her.” (Code Civ. Proc., § 418.10, subd. (a)(1).)

**Notice**

Plaintiff’s evidence shows, and CVS Health does not dispute, that CVS Health failed to provide proper notice of the hearing as required by California Rule of Court 3.1110(b). However, Plaintiff has submitted opposition to the motion. “It is well settled that the appearance of a party at the hearing of a motion and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of motion. This rule applies even when no notice was given at all. ..” (*Carlton v. Quint* (2000) 77 Cal.App.4<sup>th</sup> 690, 697.)

**Timeliness**

On July 17, a Stipulation and Order was filed granting Defendants an extension of 30 days to file their answers to the complaint. Specifically, the Stipulation and Order states:

2. Defendants require additional time to prepare and file their Answer to the Complaint.
3. On conditions specified elsewhere, Plaintiff has agreed to grant Defendants an extension of thirty (30) days to file their Answer(s) to the Complaint.
4. Defendants' deadline to answer (only) the Complaint is hereby extended by thirty (30) days from the current deadline.

Based upon this Stipulation and Order, Plaintiff contends CVS Health was only allowed to file an answer and not a motion to quash.

The evidence shows that Defendants requested an extension to answer and Plaintiff agreed to such extension on condition Defendants file an answer and not an attack on the pleadings. (Sheffer decl. ¶4 and Howard decl. ¶5.) Although the Stipulation is somewhat ambiguous, the Court finds that the Stipulation and Order extended CVS Health's time to respond (although not by a motion attacking the pleadings), and CVS filed this motion to quash within its extended time to respond. A motion to quash is not an attack on the pleadings. (*Kroopf v. Guffey* (1986) 183 Cal.App.3d 1351, 1360.)

Despite the Court's conclusion above, it finds that Plaintiff's position on the timeliness issue was reasonable. Therefore, the Court will give Plaintiff an opportunity to file opposition on the merits. The motion is continued to October 7, 2026, at 1:30 pm. Opposing and reply papers shall be filed within the time limits set forth in Code of Civil Procedure section 1005, subdivision (b).

*All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.*

*The Zoom appearance information for September, 2026 is as follows:*  
<https://marin-courts-ca-gov.zoomgov.com/j/1615487764?pwd=Ob4B5J7LLKcpnkxzJjiEOSHnzEGafG.1>

Meeting ID: 161 548 7764  
Passcode: 502070

*If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>*